

HINES, et al v. UNITED PARCEL SERVICE, INC., et al

23CV46772

**DEFENDANT JEREMY PRATT'S RENEWED MOTION TO
COMPEL ARBITRATION OF ALL CLAIMS**

Defendant Pratt has moved for an order compelling all claims to arbitration and dismissing this lawsuit (curing the prior failure to comply with Local Rule 3.3.7), under the Federal Arbitration Act ("FAA") and the terms of the arbitration agreements between UPS and plaintiffs.

FAA (9 U.S.C. §§ 1, et seq.) applies to any "contract evidencing a transaction involving commerce." (9 U.S.C. § 2.) The US Supreme Court has interpreted the FAA's application broadly, stating that the FAA is a "body of substantive law ... enforceable in both state and federal courts." (*Perry v. Thomas*, (1987) 482 U.S. 483, 489 [citing *Southland Corp. v. Keating* (1984) 465 U.S. 1, 11–12]. Here, the arbitration agreements signed by each plaintiff expressly provide that the FAA governs their terms and that they evidence a transaction involving commerce. Accordingly, the FAA governs the arbitration process here. (See *Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal. App. 4th 1110, 1116.)

California similarly has a "strong public policy in favor of arbitration." (*Larkin v. Williams, Woolley, Cogswell, Nakazawa & Russell* (1999) 76 Cal. App. 4th 227, 229; see *United Trans. Union, AFL CIO v. Southern Cal. Rapid Transit Dist.* (1992) 7 Cal. App. 4th 804, 808; *Evenskaas v. California Transit, Inc.* (2022) 81 Cal. App. 5th 285.)

Further support is afforded by the plaintiffs' non-opposition to the Motion to Compel. The court is entitled, but not required, to consider that lack of opposition to be an admission the motion is meritorious. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Motion to Compel Arbitration is GRANTED. (The request to dismiss is untimely and not ripe, as the Court retains jurisdiction over this matter until the arbitration process is fully completed and plaintiffs then are to dismiss this matter.)

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant Pratt to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

PETTINCHIO v. TISCORNIA

23CV47094

PLAINTIFF'S MOTION TO CEASE AND DESIST; INJUNCTION; EMERGENCY RELIEF

Plaintiff filed a two page complaint and a two page motion requesting a cease-and-desist order preventing his landlord from entering his rented premises to repair its electrical service.

(The pleadings are confusing to say the least. Plaintiff Pettinichio filed an initial complaint; Jim W. Hildreth for Gretel Tiscornia prepared the Answer, but it reversed the parties, i.e. listing Tiscornia as Plaintiff and Pettinichio as Defendant.)

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754- 6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m., the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice is a basis for the Court to deny the motion.

In addition to this procedural shortcoming, the Court notes no legal or factual basis is provided for the claimed relief in either the complaint or the present motion.

Based on the foregoing, the motion is DENIED on both procedural and substantive Grounds, without prejudice to refile an appropriate motion.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.